

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

Certain Dynamic Random Access Memory (DRAM) Devices,
Products Containing The Same, and Components Thereof (III)

Investigation No. 337-TA-____

Docket No. 3930

STATEMENT OF THIRD PARTY
FORMER COMMISSIONER, FORMER JUDGES,
AND LAW PROFESSORS
ON THE PUBLIC INTEREST
IN RESPONSE TO THE COMMISSION'S NOTICE
OF REQUEST FOR STATEMENTS

DATED AUGUST 28, 2026

Pursuant to the U.S. International Trade Commission’s request for interested parties and members of the public to file comments on the above-mentioned matter, we submit this comment as a former Commissioner, former judges (retired), and professors who specialize in patent law and remedies. Specifically, we are responding to the Commission’s request for information relating to “any public health, safety, or welfare concerns in the United States relating to the requested remedial order.”¹

The public has a strong interest in the Commission issuing an exclusionary order as a remedy for patent infringement, which is why 19 U.S.C. § 337(d)(1) mandates that the Commission issue an exclusionary order *unless* the infringing respondent rebuts this injunctive remedy with specific evidence of equally important public interest considerations, such as classic public interest considerations of threats to health and welfare. The text and structure of § 1337(d)(1) thus creates a presumption in favor of an exclusion order given findings and legal determinations by an Administrative Law Judge of infringement of a valid patent. The Commission then receives additional evidence of countervailing public interest considerations to balance against these factual findings and legal conclusions.² The Commission should uphold its fealty to the text and structure of its governing statute in first evaluating the public interest in securing patent rights and then in weighing this public interest against any specific evidence submitted by the respondent of potential countervailing public interest considerations.

I. The Public’s Interest in Securing the “Exclusive Right” in a Patent

The public has an interest in innovation—everyone benefits from new and improved products and services from new drugs and medical treatments to high-tech products like computers and smartphones. The Founders recognized this by authorizing Congress to secure a time-limited “exclusive right” to “inventors” as the sole means “to promote the progress of . . . useful arts.”³ This constitutional authorization to secure an “exclusive right” to inventors is on par with other delegations of power to Congress that similarly serve the public interest, such as to create an army and a navy, to coin money, and to create federal courts for adjudicating legal disputes. James Madison stated as a

¹ Solicitation of Comments Relating to the Public Interest, 91 Fed. Reg. 53278 (Aug. 17, 2026).

² See 19 U.S.C. § 1337(d)(1).

³ U.S. CONST. art. I, § 8, Cl. 8.

truism in *The Federalist No. 43* that, in securing patents to inventors, the “public good fully coincides . . . with the claims of individuals.”⁴

Consistent with the Constitution, Article III courts recognize that securing the right to exclude in all forms of property is in the public interest.⁵ Courts have specifically recognized the public’s interest in the reliable and effective protection of patents—protecting the exclusive right in technological innovations with an injunction is in the public interest.⁶ The Federal Circuit has held that the remedy of a permanent injunction for patent infringement is justified by “the public’s general interest in the judicial protection of property rights in inventive technology.”⁷ Of particular relevance to the Commission given the additional “competitive conditions” factor in its general public interest inquiry,⁸ a federal district court enjoined a patent infringer in 2019 because the defendant’s “[u]nfair competition through patent infringement is contrary to the interests of the public.”⁹

Unlike the judge-made doctrine applied by Article III courts today in determining whether to issue a permanent injunction for patent infringement under the Patent Act,¹⁰ the Commission is required by § 1337(d)(1) to grant an exclusion order on a finding of patent infringement—unless the Commission further finds countervailing public interest factors that militate against issuing this exclusion order.¹¹ The text and structure of § 1337 creates a presumption in favor of an exclusion order. In this statutory provision, Congress implemented at the Commission the historical doctrines in equity in applying a rebuttable presumption in issuing injunctions as a remedy for willful or continuing infringement of a valid patent.¹² As a result, § 1337 provides that an exclusion order

⁴ Federalist No. 43 (James Madison), in *THE FEDERALIST PAPERS* 272 (Clinton Rossiter ed., 1961).

⁵ See *Jacque v. Steenberg Homes, Inc.*, 563 N.W.2d 154, 209 (Wis. 1997) (“Society has an interest in punishing and deterring intentional trespassers beyond that of protecting the interests of the individual landowner.”).

⁶ See *Rite-Hite Corp. v. Kelley Co.*, 56 F.3d 1538, 1547 (Fed. Cir. 1995) (observing that “courts have in rare instances exercised their discretion to deny injunctive relief in order to protect the public interest,” citing four cases involving classic public interest concerns of public health and welfare).

⁷ *Douglas Dynamics v. Buyers Prods. Co.*, 717 F.3d 1336, 1346 (Fed. Cir. 2013).

⁸ 19 U.S.C. § 1337(d)(1).

⁹ *Pilot Inc. v. Coolman Outdoor Corp.*, No. 18-CV-02286 (JAK) (SPX), 2019 WL 2620723, at *5 (C.D. Cal. Apr. 10, 2019).

¹⁰ See *eBay, Inc. v. MercExchange, L.L.C.*, 547 U.S. 388 (2006) (creating four-factor test for courts to apply in determining whether to issue an injunction for the infringement of a valid patent).

¹¹ See 19 U.S.C. § 1337(d)(1).

¹² See Adam Mossoff, *Injunctions for Patent Infringement: Historical Equity Practice Between 1790 – 1882*, 38 HARVARD J. L. & TECH 923 (2025); H. Tomás Gómez-Arostegui & Sean Bottomley, *The Traditional Burdens for Final Injunctions in Patent Cases c.1789 and Some Modern Implications*, 71 CASE WESTERN RES. L. REV. 403 (2020).

“shall” issue following an investigation that finds infringement of a patent by imported articles, “unless” public interest concerns such as “public health and welfare” or “competitive conditions” preclude the issuance of an exclusion order.¹³

II. The “Public Interest” in Injunctive Remedies Like Exclusion Orders

Given the text and structure of § 1337 and the strong public interest in the reliable and effective protection of the right to exclude in property rights, the Commission regularly issues exclusion orders on a finding of patent infringement in its investigations.¹⁴ In the past forty years, the Commission has found in only three cases that the public interest rebutted the statutory mandate that it shall issue an exclusion order on a finding of patent infringement.¹⁵ In these investigations, the public interest findings were based solely in public health and welfare concerns—classic “public interest” factors.¹⁶ The Commission has recognized that its statutory mandate to consider the public interest is defined by these traditional concerns about public health and welfare.¹⁷

A fourth investigation resulted in the Commission delimiting the scope of an exclusion order, but it did so solely on the basis of evidence of archetypical public interest concerns about public health and welfare as balanced against the public interest in reliable and effective patent rights.¹⁸ In this case, the Commission structured an exclusion order for infringing cellular technologies in

¹³ 19 U.S.C. § 1337(d)(1).

¹⁴ This mirrors the historical practice of Article III courts in regularly issuing injunctions for patent infringement with the “public interest” very rarely justifying a denial of an injunction. *See* Mossoff, *supra* note 12 (finding that injunctions issued in 91.2% of cases of infringement and that the public interest was very rarely deemed a valid defense).

¹⁵ *See, e.g.,* P. Andrew Riley & Scott A. Allen, *The Public Interest Inquiry for Permanent Injunctions or Exclusion Orders: Shedding the Myopic Lens*, 17 VAND. J. ENT. & TECH. L. 751, 758-59 (2015) (“Only four ITC decisions have used the public interest exception as a means to deny an exclusion order where it was otherwise appropriate.”).

¹⁶ *See* Certain Fluidizing Supporting Apparatus and Components Thereof, Inv. 337-TA-182/188, USITC Pub. 1667 (Oct. 5, 1984) (Final) (Commission Memorandum Opinion) (hospital beds for burn victims); Certain Inclined Field Acceleration Tubes and Components Thereof, Inv. No. 337-TA-67, USITC Pub. 1119 (Dec. 29, 1980) (Final) (Commission Action and Order) (materials required for “basic scientific research”); Certain Automatic Crankpin Grinders, Inv. No. 337-TA-60, USITC Pub. 1022 (Dec. 17, 1979) (Final) (Commission Determination and Order) (engine parts for fuel-efficient automobiles during economic crisis precipitated by OPEC oil embargo).

¹⁷ *See* Certain Toothbrushes and the Packaging Thereof, Inv. No. 337-TA-391, USITC Pub. 3068, at 6 (Oct. 15, 1997) (Final) (Commission Opinion on Remedy, the Public Interest, and Bonding) (“Toothbrushes are not the type of product that have in the past raised public interest concerns (such as, for example, drugs or medical devices).”).

¹⁸ *See* Certain Baseband Processor Chips & Chipsets, Transmitter and Receiver (Radio) Chips, Power Control Chips, and Prods. Containing Same, Including Cellular Telephone Handsets, 337-TA-543, USITC Pub. 4258, at 3 (Oct. 2011).

response to proven concerns about the ability of first responders to access and use GPS systems and other telecommunications technologies, such as firefighters requiring access to GPS to address a firestorm in a populated area like the wildfires in Los Angeles in 2025. Thus, the Commission limited the scope of the exclusion order in this case only in the specific, targeted context of first responders in protecting public health and welfare.

In this fourth investigation, despite the Commission tailoring the scope of its exclusion order, it still rejected the patent infringer's argument that wireless technology is used on such a widespread scale in the modern age that this creates a countervailing public interest justifying a denial of an exclusion order. The Commission bluntly stated: "We do not accept the general proposition that, if the infringing activity is great enough, the public interest forbids a remedy."¹⁹

III. The Public Interest in Excluding Importation of Infringing DRAM Products

The arguments submitted by the Proposed Respondents and other third parties, such as the five Senators and Google, are unavailing in establishing a countervailing public interest under the statute. First, an argument about the upstream supply of DRAM *materials* is inapposite, as DRAM chips are unaffected by an exclusion order against importation of infringing DRAM *devices or end-products*. Second, generalized arguments about undermining national security or AI innovation are not *evidence* of the public interest conditions identified in § 1337(d)(1). These broad-based assertions are not evidence of a countervailing public interest, such as the evidence submitted in the 2011 investigation proving that first responders use wireless technologies to remediate emergencies. In this investigation, these generalized arguments about national security or AI innovation represent only private commercial interests masquerading as the public interest.

IV. Conclusion

There is no evidence of the public health or safety concerns long recognized by Article III courts and the Commission as constituting "public interest" factors that would override the public's interest in reliable and effective patent rights. There is no evidence of a national emergency, a documented threat to national security, or a specified loss of AI innovation that would arise from an

¹⁹ *Id.* at 153.

exclusion order against infringing DRAM devices or end-products (not chips). In this investigation, the public's interest is best served by securing the patents with an exclusion order prohibiting the importation of infringing DRAM devices and end-products. No specific evidence of countervailing public interest concerns has been introduced that overcomes the statutory mandate that an exclusion order shall issue on a finding of infringement by the Commission.

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